

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

2026CUPT067249: IN THE MATTER OF: J.G. WENTWORTH ORIGINATIONS, LLC

07/09/2026 in Department 42

Petition for Approval of Transfer of Structured Settlement Payment Rights

Motion: Petition for Approval of Transfer of Structured Settlement Payment Rights
(*Unopposed*)

Tentative Ruling: The Court intends to rule as follows:

Petitioner J.G. Wentworth Originations, LLC's petition for approval of transfer of structured settlement payment rights is GRANTED pursuant to Insurance Code section 10134 et seq.

Petitioner is directed to submit a proposed order and give notice.

Analysis:

The transfer agreement is effective only upon approval in a final court order. (Ins. Code § 10139.5(a).)

Procedural Issues

Typically, petitions for transfer of structured settlement payments are supported by declarations by the transferors. This petition is supported by an affidavit from the Transferor Jerrod Hunter.

The petition is procedurally proper. The petition is code-compliant and includes all necessary documents. (See Ins. Code, § 10139.5, subd. (f).) The petition is accompanied by written disclosures containing all information as required. (See Ins. Code, § 10136, subd. (b).) The Purchase Agreement contains all of the required information, and no prohibited terms. (See Ins. Code, § 10136, subd. (c); see also Ins. Code, § 10138, subds. (a)-(b).)

Merits

After consideration of the petition and its attached documents, any written support or opposition by interested parties, and any evidence presented at the hearing, the court GRANTS the petition.

In order to grant the petition for approval, the court must expressly find:

- (1) the transfer is in the best interest of the Payee, taking into account the welfare and support of the Payee's dependents;
- (2) the Payee has been advised in writing to seek independent professional advice and either has received that advice or knowingly waived it;
- (3) the Payee has received the disclosure form (§ 10136);

- (4) the transfer agreement complies with Insurance Code sections 10136 and 10138;
- (5) the transfer does not contravene any applicable statute or court order;
- (6) the Payee reasonably understands the terms of the transfer agreement and disclosure form; and
- (7) the Payee understands his or her right to cancel and does not wish to do so.

(Ins. Code §§ 10137, 10139.5(a); *321 Henderson Receivables Origination LLC v. Sioteco* (2009) 173 Cal.App.4th 1059, 1066.)

When determining whether the proposed transfer should be approved, including whether the transfer is fair, reasonable, and in the payee's best interest, taking into account the welfare and support of the payee's dependents, the court must consider the totality of the circumstances, including, but not limited to, the factors listed in Ins. Code § 10139.5(b).

The factors included in Ins. Code § 10139.5(b) either weigh in favor of granting approval, or are not applicable. Therefore, the Court GRANTS the petition.

The Court directs Petitioner J.G. Wentworth to submit a proposed order and give notice.